

25PR01092 Matter of Jennifer L. Platt Trust

County: sonoma

Division: Probate

Hearing date: 2027-01-08

Motion: Contested Trustee's Compensation and Attorney's Fees

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Contested Trustee's Compensation and Attorney's Fees

Tentative Ruling: APPEARANCES REQUIRED. The Court will hear argument on the issues of contested attorney's fees and Trustee compensation and will determine whether it needs to set an evidentiary hearing. If the Court finds that it does not require an evidentiary hearing, the Court will consider granting attorney's fees and Trustee's compensation as follows: attorney's fees in the reduced amount of \$36,646.50 and Trustee's compensation in the total requested amount of \$16,332.00 as explained below.

Regarding attorney's fees, some of the billed rates are excessive for the Sonoma County locality. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095 ["The reasonable hourly rate is that prevailing in the community for similar work."]; Nichols v. City of Taft (2007) 155 Cal.App.4th 1233, 1242–1243 [the relevant "community" is where the court is located].) In compliance with the Court's knowledge of local rates in its community, the Court finds the following rates for counsel are more appropriate for this locality based on their respective levels of experience: \$325 per hour for counsel Rosso, \$550 per hour for counsel Garcia, and \$500 per hour for counsel Bleasdel. All other rates are reasonable and the total hours billed are reasonable. Therefore, the total amount of attorney's fees granted is \$36,646.50.

Regarding Trustee's compensation, the Court has reviewed all of the invoices and evidence filed. The requested compensation of \$16,332.00 is reasonable considering the factors enumerated by rule 7.776 of the California Rules of Court.